

Court No. - 1

Case :- WRIT - C No. - 2334 of 2020

Petitioner :- Ramanand Vishwakarma

Respondent :- Purvanchal Vidyut Vitran Nigam And 2 Others

Counsel for Petitioner :- Jamwant Maurya

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

As prayed, put up this matter as fresh on 06.02.2020.

Order Date :- 23.1.2020

Sanjeev

(Ajit Kumar,J.) (Ramesh Sinha,J.)

Court No. - 32

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And 2 Others**

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**Counsel for Respondent :- C.S.C.,Mahboob
Ahmad**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Vipin Chandra Dixit,J.

This writ petition has been filed, *inter alia*, for the following relief:

"(i) to issue a writ, order or direction in the nature of certiorari calling for the record and quashing the recovery certificate issued on 29.11.2019 by the respondent no. 3 Tahsildar Saidpur Ghazipur initiated under provisional assessment dated 26.6.2019 passed by Executive Engineer respondent no.2."

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without deciding the

objection of the petitioner and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Heard the learned counsel for the petitioner, Mr. Mahboob Ahmad, learned counsel for the electricity department and perused the record.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 2.3.2020 at 11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of eight weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does

not appear on the said date fixed and files his objection, the impugned demand notice shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 6.2.2020

MLK